

INVITATION FOR BIDS # 2025-08-2152-SM
AMMUNITION
MULTIPLE DEPARTMENTS

St. Louis County (County) is soliciting bids to supply and deliver Ammunition.

SCHEDULE	
BID START DATE	8/12/2025
DEADLINE FOR QUESTIONS & COMMENTS	9/02/2025 at 2:00PM CST
BID DUE DATE AND TIME	9/09/2025 at 2:00PM CST
CONTRACT	
INITIAL TERM	3 years
OPTION TO RENEW	2 years
PAYMENT METHOD	Invoices based upon fixed sums for deliverables or work completed
DESIGNATED POINT OF CONTACT	
SHANE MCKEE	smckee@stlouiscountymo.gov

County solicitations, once published, are under a Cone of Silence. All communication from a bidder or a bidder's representative relating to this solicitation must be directed to the designated Point of Contact above.

Submit bids via the County's online portal. Paper, faxed, emailed, or hand-written bids will not be considered. Bidders must register using the County's Vendor Self Service website which can be reached at <https://stlouiscountymovendors.munisselfservice.com>.

If you would like to attend the virtual Bid Opening, please use the following link:
<https://spaces.avayacloud.com/spaces/6436efc4a30928ea10b0bca3>

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SECTION 1 - INSTRUCTIONS TO BIDDERS

1.1 Questions and comments

- 1.1.1 Submit all questions, comments, exceptions, and suggestions to the Designated Point of Contact by the Deadline for Questions and Comments. Questions and comments received after the deadline may not be acknowledged.
- 1.1.2 If taking exceptions to any portion of this solicitation, submit the exceptions in writing to the Designated Point of Contact by the Deadline for Questions and Comments. Identify specific sections and paragraph numbers to which exceptions are taken. If requesting changes to language, identify specific words or phrases to be changed and provide new requested language. If the County agrees to the changes, the solicitation will be revised and an addendum will be posted.
- 1.1.3 Failure to take exceptions prior to the deadline stated or as directed will be deemed a waiver of any objection. Bids that are conditional or include exceptions may be considered non-responsive and will be rejected.
- 1.1.4 Requests for complete replacement of the County's Standard Agreement terms will not be granted.

1.2 Revisions to the Solicitation

The County may cancel, revise, or reissue this solicitation, in whole or in part, for any reason. Revisions will be posted as addenda on the Vendor Self Service site. No other revision of this solicitation will be valid. Bidders are responsible for ensuring that they have received all addenda prior to submitting bids.

1.3 Corrections and Modifications to Bids

Bids may be withdrawn, modified, or replaced at any time prior to the Due Date and Time. Withdrawn bids may be resubmitted up to the time designated for receipt of bids. After the Due Date and Time, bids may not be modified unless requested by the County.

1.4 Communication

- 1.4.1 County solicitations, once published, are under a "Cone of Silence". Violation by a bidder or bidder's representative will result in rejection of the bid and may result in a bidder being found non-responsible, barred from participating in this or future procurements, and becoming subject to other legal penalties.
- 1.4.2 Other than the Designated Point of Contact, no bidder or person acting on behalf of a prospective bidder may communicate with or discuss any matter relating to

the solicitation with any officer, agent, or employee of the County except the specific types of communication defined in Section 107.401 SLCRO.

1.5 Pre-bid conference and site visits

- 1.5.1 If a pre-bid conference is scheduled, and if ADA accommodations are required, submit a request for accommodations to the Designated Point of Contact.
- 1.5.2 Answers to questions raised prior to and at the pre-bid conference will be posted as addenda on the Vendor Self Service site.
- 1.5.3 If the pre-bid meeting is mandatory, bidders who did not attend the pre-bid meeting will be disqualified.

1.6 Prohibited Prior Work

- 1.6.1 No person or entity may submit a bid in response to this solicitation if that person or entity has:
 - A. Assisted the County in drafting or establishing specifications, requirements, or cost estimates for this procurement, or
 - B. Had access and exposure to information pertinent to this procurement that is unavailable to other bidders.
- 1.6.2 Bidders that received assistance from any such person or entity or who will use the person or entity in performing the requested services will be disqualified.
- 1.6.3 The prohibition does not apply to general, non-specific advice or information offered to or requested by the County to aid in developing the solicitation, or to comments made subsequent to publication of the solicitation.

1.7 Submission and Opening of Bids

- 1.7.1 Allow time for all documents to upload in VSS. Bidders are responsible for ensuring bids are submitted before the deadline.
- 1.7.2 The Director of Procurement may accept or reject any bids and may waive any irregularities in the bids if such waiver does not substantially change the offer or provide a competitive advantage to any bidder.
- 1.7.3 No bids submitted by email, or any modifications to previously submitted bids made by email, will be considered. Handwritten bids may be rejected.
- 1.7.4 Bids must be signed by a legally authorized representative of the submitting firm.
- 1.7.5 All bids and materials submitted with bids become the property of the County. The County is subject to the Missouri Sunshine Law (RSMO Chapter 610). Bid

contents, with select exceptions, become public records open to inspection by interested parties after a contract is executed or all bids are rejected.

- 1.7.6 Failure to comply with the requirements of this IFB or evidence of unfair bid practices is cause for rejection of the bid.

1.8 No Commitment

This solicitation does not commit the County to make an award, nor will the County pay any costs incurred preparing and submitting bids, or in making necessary studies for the preparation of bids. The County may reject all bids and cancel this solicitation.

1.9 Bid Pricing

- 1.9.1 A Bid Sheet is included in this IFB, a copy of the Bid Sheet shall be submitted with bids. The total amount from the Bid Sheet is to be entered using the Vendor Self Service Portal.
- 1.9.2 The County is exempt from Missouri sales and use tax and will provide an exemption certificate to the awarded bidder. Do not include sales tax in bid prices.

1.10 Addenda

Changes to the specifications or requirements will be posted on the Vendor Self Service site as addenda. Bidders are responsible for compliance with all changes, modifications, or requirements put out through addenda. The County will not be responsible for failure to check the VSS prior to submission of a bid.

1.11 Modification or Withdrawal of Bid

- 1.11.1 Bids may be withdrawn any time prior to the scheduled closing time for receipt of bids. No bid may be modified or withdrawn for a period of 120 calendar days after the scheduled closing time.
- 1.11.2 Bidders are responsible for submitting bids, and any modifications or revisions, so as to reach the County's Division of Procurement by the time specified in the IFB documents. Any bid, modification, or revision received by the Division of Procurement after the exact time specified for receipt of offers will be considered late and will not be considered.
- 1.11.3 Bids submitted early may be withdrawn only by emailed notice to the Point of Contact prior to the submission deadline.
- 1.11.4 Withdrawn bids may be resubmitted up to the time designated for receipt of bids provided that they are then fully in conformance with this IFB.

1.12 Mistakes in Bids

- 1.12.1 If there is a significant and obvious disparity between the unit prices or lump sum of the lowest apparent responsible bidder and other bidders, the apparent low bidder may be contacted to validate the bid price. This does not relieve a bidder from the responsibility for the submission of a correct bid and no change to the price may be made. If the bidder can provide convincing evidence that indicates the bid was a mistake to the satisfaction of the Director of Procurement, the bid for that item or items may be withdrawn without penalty.
- 1.12.2 Bidders have two business days after the unofficial bid tabulation is posted on the County's website to notify the Director of Procurement, in writing, of any alleged mistake in bid. Such communication must include convincing evidence that supports the existence of the mistake. Only the Director of Procurement may waive irregularities or accept mistakes in bids.
- 1.12.3 If the basis of award is "all or nothing", then the entire bid may be forfeited. If the basis of award is "line by line", the bidder's other line-item prices may be considered. If the basis of award is "by groups" and the mistake is part of any group or line items, the entire group will not be considered for award.

1.13 Electronic Signature

By submitting a bid or quote electronically, the bidder acknowledges and warrants that it has made a legal offer, is bound by all responsibilities of a legal offer, is subject to penalties for failing to be bound by a legal offer exactly as if the bid or quote had been physically signed and that the person whose signature is electronically affixed is authorized to sign and submit the bid or quote.

1.14 Minority and Women-Owned Business Enterprises

- 1.14.1 "M/WBE" means a Minority and Women-Owned Business Enterprise that is certified by Missouri Department of Transportation (MODOT) or St. Louis Development Corporation (SLDC).
 - A. A minority-owned business enterprise (MBE) is a for-profit enterprise at least 51% owned, operated, and controlled by a minority group member who is Asian, Black, Hispanic, or Native American.
 - B. A woman-owned business enterprise (WBE) is a for-profit enterprise at least 51% owned, operated, and controlled by a female.
- 1.14.2 A 5% bid discount will apply to bids from M/WBEs for contracts of \$300,000 or less. The discounted amount will be used in evaluating bid prices, but the actual bid amount will be the basis for the contract award. To qualify for the discount, the M/WBE bidder must include a copy of its current certification approval letter or an electronic screen print of the certification with a current date stamp.

1.15 Acceptance and Award

- 1.15.1 Award, if made, will be to the responsive, responsible bidder offering the lowest price or prices.
- 1.15.2 After receipt and review of bids, an unofficial tabulation will be posted on the County website. Posting of the tabulation does not constitute an award. The County will issue a Purchase Order or contract to the successful bidder.

1.16 Determination of Responsibility

The County will make a determination of a bidder's responsibility based on information submitted with the bid, information submitted upon County request, information resulting from the County's inquiry of bidder's references and investigations into the bidder's background, and the County's own knowledge of the bidder. The County may consider matters such as the bidder's integrity, compliance with public policy, record of past performance, and financial and technical resources. Bidders determined to be non-responsible and who cannot be made to be responsible within timelines set by the County will not be considered further.

1.17 Required Forms

- 1.17.1 Vendor Information Form (Attached)
- 1.17.2 Vendor Background Information and Reference Form (Attached)
- 1.17.3 M/WBE Certification (if applicable, required at time of bid submittal)
- 1.17.4 Copy of Missouri or other Secretary of State Registration showing current status
- 1.17.5 Bid Sheet

1.18 Post Award Requirements

1.18.1 Disclosures

If applicable and requested by the County prior to commencing work, the selected bidder must:

- A. Disclose all pending litigation and tax liens;
- B. Disclose all criminal charges where the company and/or officers, and/or owners of over 10% of the company are defendants regarding the charges;
- C. Provide audited financial statements for the past three fiscal years, if requested by the County.
- D. Provide samples, drawings, illustrations, and related items

1.18.2 Staff agreements

If the work requires access to County documents and materials unavailable to the general public, the County may require execution of a non-disclosure or similar agreement prior to providing access to such materials. The selected bidder agrees to collect, store, and maintain such signed agreements for all staff.

1.18.3 E-Verify

Bidders who receive awards for services in excess of \$5,000.00 must comply with §285.530(2) R.S.Mo. Information on the E-Verify program can be found at www.e-verify.gov Acceptable documents to show enrollment and participation consist of the following two pages of the E-Verify Memorandum of Understanding (MOU):

- Valid, completed copy of the first page identifying the employer
- Valid, completed copy of the signature page signed by the employer and the Department of Homeland Security – Verification Division

SECTION 2 - PROTESTS

Protests that do not comply with the protest procedures outlined below will be rejected.

2.1 Protest Eligibility

- 2.1.1 Protests or objections may be filed regarding the procurement process, **solicitation** or addendum content, or contract award.
- 2.1.2 The County will review only protests submitted by actual or prospective bidders. Protests by actual or prospective subcontractors will be rejected.

2.2 Protest Deadlines

File protests with any supplemental materials by 5 p.m. CST, as appropriate, on the deadlines set forth below. Failure to file by the relevant deadline constitutes a waiver of any protest on those grounds. Supplemental protest materials filed after the relevant deadline will not be considered unless the County determines that there are extenuating circumstances.

- 2.2.1 If relating to the content of the **solicitation** or an addendum, including protests related to M/WBE requirements, file within five business days after the date the County releases the **solicitation** or addendum with the revised content.
- 2.2.2 If relating to notice of non-responsiveness, file within five business days after the County issues such notice.
- 2.2.3 If relating to the intent to award, file within five business days following the County's notice of intent to award.

- 2.2.4 The date of filing is the date the County receives the protest, unless received after 5 p.m. CST, on a County non-business day, in which case the date of filing will be the next business day.

2.3 Protest Contents

- 2.3.1 Submit protests in writing to the Director of Procurement. Include all of the following:
- A. Detailed grounds for the protest, supported with technical data, documentary evidence, names of witnesses, and other pertinent information related to the subject being protested; and
 - B. The law, rule, regulation, or policy upon which the protest is based, alleging a clear violation of a specific law, rule, regulation, or policy; and
 - C. If applicable, identification of any proprietary or confidential material, which must be indicated by stating on the front page of the protest document that proprietary material is included, and identifying the alleged proprietary information wherever it appears within the protest documents.
- 2.3.2 Protest documents will not be withheld from any interested party outside of the County unless withholding the information is required by law or regulation. Identifying either the entire contents or the majority of contents of a protest as proprietary or confidential will result in no part of the protest being treated as proprietary or confidential by the County.

SECTION 3 - BIDDERS REPRESENTATIONS AND CERTIFICATIONS

Submission of a bid constitutes a firm offer by the bidder to the County to provide all of the goods and services described in the solicitation and will be valid for 60 calendar days after the Bid Due Date and Time, or until a contract is executed by the County and the bidder, whichever is earlier. By submitting a bid, the bidder certifies that it:

- Has examined and is familiar with all of the provisions of the solicitation and all plans, specifications, and incorporated references, including any addenda; and
- Will perform in conformance with the requirements and conditions of the solicitation, providing all necessary labor, machinery, tools, and equipment to do all the work and furnish all the materials specified, in the manner and times prescribed and according to the requirements set forth in the final contract or any amendments to it;
- Has based bid prices only upon the required services, materials, and systems and prices are not subject to contingency, reservation, or exception;
- Has arrived at the bid prices independently, and has made no attempt to induce any

other person or firm to submit or not to submit or to adjust a bid or proposal for the purpose of restricting competition;

- Has not employed or retained any person other than a full-time bona fide employee working solely for the bidder to solicit or secure this contract.
- Is current with all County taxes, if applicable;
- Possesses the tools and equipment necessary to safely perform the work;
- Has not made a campaign contribution to a candidate for elective office authorized by the St. Louis County Charter (County Executive, County Councilmember, County Prosecutor, or County Assessor) within 90 days of issuance of this solicitation (“prohibited contribution”); and will not make a prohibited contribution within 90 days after award of the contract from this solicitation;
- Is not currently engaged in, and will not, for the duration of the contract with St. Louis County, engage in a “Boycott of the State of Israel” (as defined in Section 34.600 RSMo) in regards to:
 - Goods or services from the State of Israel;
 - Companies doing business in, or with, the State of Israel;
 - Companies authorized by, licensed by, or organized under the laws of the State of Israel; or,
 - Persons or entities doing business in the State of Israel;
- Will comply with all applicable laws, ordinances, rules and regulations governing the conduct of business in St. Louis County and the State of Missouri;
- Is not debarred, suspended, or otherwise excluded from, or ineligible for participation in, federal, state, or County programs or activities.

SECTION 4 - GENERAL TERMS AND CONDITIONS

The following terms and conditions will apply to any contract resulting from this solicitation.

4.1 Conflicts of Interest

- 4.1.1 Contractors and subcontractors are eligible for contracts with the County only if, at the time a solicitation is released, are not, and will not, during the performance of the required services, participate in any other similar work involving a third-party with interests in conflict or likely to be in conflict with the County’s interests.
- 4.1.2 No individual or entity or an agent of an individual or entity currently doing business with or planning to seek contract awards from the County may offer

gifts to County officers, employees, or agents. County officers, employees, and their agents may not solicit or accept gifts, gratuities, favors, or anything of monetary value from any individual or entity with a current or potential agreement of any kind with the County, or parties to sub-agreements. This includes all gifts, gratuities, favors, entertainment, loans, and such items as liquor, lodging, travel, food, and tickets to public functions such as sports events, theaters, etc. Any party offering gifts in contravention of these requirements may be found non-responsible and barred from entering new contracts with the County by the Director of Procurement, may have current contracts terminated, and may be subject to further legal action.

- 4.1.3 Contractors may not employ as a director, officer, employee, agent, or sub-contractor any elected or appointed official of the County or any member of his/her immediate family nor may an offer of future employment be conditioned on the favorable treatment of an offer or the award of a contract or contract change.
- 4.1.4 Throughout the duration of the contract, the contractor agrees to disclose any pending or active investigations or litigation that may affect the ability of the contractor to carry out the project.

4.2 Estimated Quantities

If the solicitation results in an indefinite quantity or requirements contract, the actual amount of goods and services requested by the County may be less than the maximum value of the contract and there is no guarantee, either expressed or implied, as to the actual quantity of goods and services that will be authorized under the contract.

4.3 Contract Fees

The fees quoted by the contractor will remain firm during the contract term unless otherwise agreed to by the County.

4.4 Contingent Fee

Contractor warrants that no agreement has been made with any person or agency to solicit or secure this contract upon an understanding for a gratuity, percentage, brokerage or contingent fee in any form to any person excepting bona fide employees of bidder or bona fide established commercial or sales agencies. For breach of this warranty, County may terminate the contract and will be entitled to pursue the same remedies against the contractor as it could pursue in the event of a material breach of this contract. As a penalty in addition to any other damages to which it may be entitled to by law, the County may recover exemplary damages in an amount to be determined by the County. The County's rights and remedies under this paragraph are not exclusive and are in addition to any other rights or remedies provided by law.

4.5 Non-Discrimination in Employment

Contractor may not discriminate against any employee or applicant for employment because of race, creed, color, gender, sexual orientation, gender identity, national origin, age, marital status, or disability. Contractor will take affirmative action to ensure that applicants are employed and that employees are treated during their employment without regard to race, creed, color, gender, sexual orientation, gender identity, national origin, age, marital status, or disability. Such action includes employment upgrading, demotions or transfers, rates of pay or other forms of compensation, and selection for training including apprenticeships. In the event of contractor's noncompliance with the provisions of this paragraph, the contract may be terminated or suspended in whole or in part and contractor may be declared ineligible for further County contracts.

4.6 No Agency

Except as the County may specify in writing, the contractor has no authority, express or implied, to act on behalf of the County in any capacity whatsoever, as an agent or otherwise, or to bind the County or its members, agents, or employees to any obligation whatsoever, unless expressly provided in this contract.

4.7 No Assignment

No portion of this contract or any rights or interest in it, nor any claim arising under it, may be assigned by the contractor without the County's prior written approval. Requests for assignment must be directed to the Director of Procurement. Requests must be in writing and received by the Director at least thirty days prior to the proposed date of assignment. All assignments must require that the assignee will comply with all terms, conditions and provisions of the contract between the contractor and County. Claims for money due to contractor from the County under this contract may be assigned to a bank, trust company, or other financial institution without prior County approval but will not be honored until such assignment or transfer is furnished to the County in writing.

4.8 Independent Contractor

The relationship of the contractor to the County will be that of independent contractor and no principal agent or employer-employee relationship will be created by the contract. Contractor retains full control of all hiring, compensation, and discharge of its employees and is fully responsible for all matters relating to payment of its employees, including compliance with Social Security, withholding tax, and all other laws and regulations governing such matters.

4.9 Subcontracts

Subcontractors may not perform work under this contract without prior written County approval. Regardless of any such approval, the contractor is responsible for all performance, whether self-performed or performed by a subcontractor, and is fully

responsible for the acts, errors, or omissions of a subcontractor and persons employed by a subcontractor. Nothing in this contract or in any subcontract will create any contractual relationship between any subcontractor and the County.

4.10 Licenses

All required and applicable licenses of contractor must remain current during the term of the contract.

4.11 Compliance with False Claims Act

Contractor acknowledges that 31 U.S.C. Chap. 38 (Administrative Remedies for False Claims and Statements) applies to the contractor's actions pertaining to this contract.

4.12 Contract Changes

4.12.1 If a change in a contract is necessary, the County and contractor may execute a change order, which will result in a contract amendment. If the County requests a change within the general scope of the contract, the contractor is required to provide a written response within 15 days. Changes requested by the contractor must be submitted to the County project manager. If the County agrees, a contract amendment will be executed. Changes that materially alter the scope of the contract will not be allowed, and the County project manager has no authority to authorize such changes.

4.12.2 No action taken by the contractor that affects any provision of the contract will entitle the contractor to any equitable adjustment unless the action has been specifically addressed in a change order/contract amendment fully executed prior to such action.

4.13 Notices

4.13.1 Delivery

Any notice to any contractor from the County relative to any part of this contract must be in writing and considered delivered and the service completed when the notice is sent to the County project manager or the Director of Procurement.

4.13.2 Receipt

Notices will be deemed received when actually received via email or in the office of the addressee, or by the addressee if personally delivered, or when the delivery is refused, as shown on the receipt of the U.S. Postal Services, private carrier or other party making the delivery. Notices received after 5:00 p.m. will be deemed received on the first business day following delivery.

4.14 Ownership of Deliverables

Any work product prepared or developed pursuant to this solicitation or contract will be the property of St Louis County, including all calculations, notes, photos, recordings of any kind, samples, estimates, and field notes. All property rights, including intellectual property rights such as copyrights or patents that arise from creation of deliverables or other work products required by this contract to be developed for the County will be the property of the County and contractor relinquishes all claims to such property.

4.15 Indemnification

The Contractor agrees to indemnify, defend, and hold harmless the County, its elected and appointed officials, employees, agents, and volunteers from and against all claims, damages, losses, liabilities, and expense, to the fullest extent permitted by law, including attorneys' fees, for injuries to persons or damage to property occasioned by any acts or omissions of Contractor, its subcontractors, agents, independent contractors or employees, and for any breach of the covenants, representations, certifications, and warranties made by Contractor in connection with this contract. This section regarding indemnification applies to all liability, regardless of any applicable insurance policies. The policy limits do not act as a limitation upon the amount of indemnification to be provided by Contractor. This section of the contract will survive in perpetuity.

4.16 Records and Audits

- 4.16.1 Contractor agrees to generate and maintain, in accordance with appropriate accounting practices and procedures, book, records, ledgers, receipts, accounts, back-up documents, and all other information related to performance under the contract, including personnel and property records, adequate to identify and account for all costs pertaining to the Contract, and to make all such records available for inspection by the County or any other authorized government entity upon the County's request.
- 4.16.2 Contractor must maintain all such records on a generally accepted accounting basis for three years after final payment by County has been made and all actions pertaining to the contract have been settled and completed.

4.17 Data Privacy and Security Requirements.

- 4.17.1 The contractor may have access to proprietary and confidential materials regulated by federal, state, or local laws and regulations, and will be required to safeguard any such materials from any disclosure by establishing and maintaining data privacy and security measures and requirements for all information, data, documents, and materials that contractor receives, generates, collects, and maintains in performing the services required. The contractor will be fully liable and agrees to indemnify and defend the County against any action resulting from any disclosure of any confidential or personally identifiable information related

to any individual, or confidential information related to the County, if such disclosure is caused by contractor's employees, agents, or subcontractors. The County reserves the right to examine all laptops, flash drives, and other media on persons entering or leaving County property.

- 4.17.2 Depending on the work undertaken, the County may require certain contractor staff to be fingerprinted, pass security requirements, and undergo criminal background checks as specified by the County, and may, at its sole discretion, deny access to any individual.
- 4.17.3 Contractor may not use for financial gain, disclose, or make other improper use of confidential or otherwise privileged information that is acquired in connection with this contract. This includes personally identifiable information, knowledge of selections of contractors or subcontractors in advance of official announcement by the County, and all other information that is not normally made publicly available or that has not yet been made publicly available by the County.

4.18 Delivery

If applicable, deliveries must be made in accordance with the contracted delivery schedule and in the quantities ordered. Failure to comply may result in termination of the contract. The County expressly retains all other rights or remedies provided by law for any violation of this clause and no action by the County will constitute a waiver of any such right or remedy.

4.19 Acceptance and Approval

All goods and services supplied under this contract are subject to final inspection and acceptance by County notwithstanding any payment or other prior inspections or design approvals. The County's acceptance of any goods and services will not waive any warranty.

4.20 Warranty

- 4.20.1 Unless otherwise agreed to in writing by the parties, Contractor warrants that items ordered to specifications will conform to the specifications and to any drawings, sample or other description furnished or adopted by County or, if not ordered to specifications will be fit and sufficient for the purpose intended. Contractor further warrants that all items will be new, merchantable, of good material and workmanship and free from defect.
- 4.20.2 Such warranties, together with Contractor's service warranties and guarantee, if any, shall survive inspection, test, acceptance of and payment for the items and shall run to the County, its successors, assigns and citizens.
- 4.20.3 Except for latent defects, notice of any defect or nonconformity must be given by the County to the Contractor one year after acceptance. County may, at its

option, return for credit or require prompt correction or replacement of the defective or nonconforming items or have the defective items corrected or replaced at the Contractor's expense. Return to Contractor of any defective or nonconforming articles and delivery to County of any corrected or replaced items shall be at Contractor's expense.

- 4.20.4 Defective or nonconforming items must be corrected or replaced unless otherwise specified on County's written order. Items required or replaced are subject to the County acceptance and approval in the same manner and to the same extent as items originally delivered under this contract.

4.21 Release Void

County's representatives may not waive or release any rights in connection with any visits to premises of contractor or subcontractors. No such waiver or release will be valid if required by contractor or any third persons in any action or proceedings. Contractor is further required to impose these Release Void requirements on its subcontractors whenever it applies.

4.22 Funding Out

The contract will terminate at such time, if any, that the County Council fails to appropriate sufficient sums in the budget year for which the contract applies to pay the amount that may become due.

4.23 Invoices; Reporting and Documentation

Invoices must be submitted to the designated County office and must include all of the required information and/or attached documentation. Invoices without complete information or documents may be rejected. If subcontractor and supplier payment reports are required, incomplete reports may result in reduced or withheld payment.

- 4.23.1 Name of the business concern and invoice date.
- 4.23.2 Contract number, Purchase Order number, or other authorization for goods and services delivered or rendered.
- 4.23.3 Description, price, and quantity of property or service provided.
- 4.23.4 Description of services rendered including who performed the service, what services covered, applicable hourly rates, number of hours or period of time to complete work, and any other pertinent information stipulated in the contract.
- 4.23.5 Shipping and payment terms, and such other substantiating documentation or information as required by the contract.

- 4.23.6 Name, title, phone number, and mailing address of person to whom payment is to be sent.
- 4.23.7 If the invoice is for partial payment of ongoing work, indication of how much work has been completed to date and how much remains and a statement that all suppliers and subcontractors who provided goods or services during the prior payment period have been paid.
- 4.23.8 Failure to pay subcontractors and suppliers timely may result in the County's withholding payment until acknowledgement of payment by the subcontractor or supplier is received by the County or until evidence of payment has been presented.
- 4.23.9 Depending on the contract, additional information may be required and information may be required to be uploaded into various electronic platforms.

4.24 Payment

Upon submission of a complete invoice and completion of all reporting requirements, the County will pay the contractor the prices stipulated in the purchase order or contract for goods and services rendered and accepted, less any deductions allowed.

4.25 Waivers

Failure of County to insist on performance of any of the terms and conditions or requirements of this contract will not be construed as a waiver of such terms, conditions or requirements, all of which will remain in full force and effect for the duration of this contract.

4.26 Termination

4.26.1 Termination for Cause

In the event of material breach, or should the contractor fail to perform in accordance with the terms of this contract, the County will send a notice to cure. If contractor fails to cure the problems to the County's satisfaction within ten days of receiving such written notice, the County may immediately terminate the contract and seek recovery.

4.26.2 Termination for Convenience

The County may terminate the contract or a task order, in whole or in part, at any time by written notice. The contractor will be paid its costs, including closeout costs and profit on work performed up to the time of termination notice. On receipt of such notice, the contract will automatically terminate without further obligation of the parties.

4.26.3 Contractor's Deliverables under Early Termination

Before any settlement cost is paid, the County must have received and accepted all deliverables, including documents and correspondence required as deliverables, whether in complete and final form or in draft or incomplete form. If contractor possesses any property belonging to the County, contractor will return it to the County or account for and dispose of it as directed by the County prior to the release of payment by the County.

4.26.4 Invoice and Payment Under Early Termination

Separate final invoices for project-related costs and for termination settlement costs must be submitted no later than 30 calendar days after the notification of termination. Contractor's acceptance of final payment releases the County from all claims by contractor for issues arising under the contract.

4.27 Disentanglement

On termination of the contract, contractor must provide all documents, data, drawings, plans, manuals, warranties, specifications, passwords, and other materials that will enable a complete transition of services to the County or any third party designated by the County, and will perform such additional tasks as may be necessary to enable the County or its designated third party to assume provision of the services without any interruption or adverse impact on provision of services or on County activities. All such disentanglement activities are considered part of base services and must be completed to the County's satisfaction before final payment is released. Should the contractor fail to complete the disentanglement tasks, contractor will be liable for all costs, including reasonable attorney's fees, incurred by the County in completing the tasks and transferring provision of services.

4.28 Obligations That Survive Expiration Or Termination of Contract

All obligations contained in the contract that have not been fully satisfied at the end of the contract term will be enforceable by the other party to the extent the obligations remain unsatisfied.

4.29 Applicable Laws

All work performed under this contract must be in compliance with all current Federal, State, and local laws and regulations. Should contractor fail to comply with such laws or regulations, or perform work in a manner unacceptable to the County, the contractor will either replace the goods, or re-perform the services to effect such compliance, or, at the discretion of the County, pay all costs associated with correcting the goods or services.

4.30 No Waiver

Failure of County to insist on performance of any of the terms and conditions or requirements of this contract will not be construed as a waiver of such terms, conditions, or requirements, all of which will remain in full force and effect for the contract duration.

4.31 Force Majeure

Neither party will be liable for delays, or defaults in the performance of this contract due to Acts of God, riots, strikes, fires, explosions, accidents, governmental action of any kind or any other causes beyond the party's control and without its fault or negligence. Should an event occur that could not have been overcome by the due diligence or planning, the non-performing party agrees to notify the other party promptly and to pursue best efforts to resume performance as quickly as possible, suspending performance only as long as is necessary due to the force majeure event. In such cases, the County will not assess liquidated damages or avail itself of other remedies, but may allow time to cure the non-performance or terminate the contract in whole or in part.

4.32 Order of governance:

In the event of conflicting provisions, the following order of precedence will apply:

- Change Orders
- Scope of Work / Technical Provisions
- County Standard Terms and Conditions
- The solicitation
- The bid

4.33 Governing Law

This Contract is made and entered into in St. Louis County, Missouri, and the laws of the State of Missouri will govern the construction of this contract and any action or causes of action arising out of it. All claims or causes of action arising out of this contract will be litigated in the Twenty-First Judicial Circuit Court of the State of Missouri.

SECTION 5 - SCOPE OF WORK

5.1 Overview and General Information

- 5.1.1 The County is soliciting bids to establish annual requirements contract(s) for the purchase of ammunition as needed by the departments of Police, Parks & Recreation, Justice Services, and the Sheriff's Office.
- 5.1.2 No substitutions for the specified products will be accepted unless the Contractor submits a request to propose an alternate equivalent product for consideration via email to the designated point of contact prior to the deadline for questions and comments date.

- 5.1.3 Ammunition products furnished via this contract must be factory new. Reloaded ammunition will not be accepted unless upon prior written authorization is provided by the County.

5.2 Bidding Instructions

- 5.2.1 The ammunition products to be furnished via this solicitation are indicated on the Bid Sheet.
- 5.2.2 On the Bid Sheet, enter the unit **price per case**—including all shipping and handling charges for F.O.B destination. A “No Bid” for any item is acceptable by entering a zero-dollar amount. The total amount from the Bid Sheet is to be entered in the Vendor Self-Service portal.
- 5.2.3 Listed quantities of cases are annual estimates. The County is not obligated to purchase a specified quantity of any item. Orders will be placed by departments as needed.
- 5.2.4 The quantities of rounds per case requested for each line item is indicated in the “Rounds per Case” column.
- 5.2.5 Contractor shall indicate in the “Delivery Time” column the expected number of weeks for delivery of the product after receipt of an order.

5.3 Order Procedure, Freight, and Delivery

- 5.3.1 Orders against this contract will be placed as required. Orders may be submitted in writing via purchase order, in writing via email, or via phone call.
- 5.3.2 Contractor’s unit pricing for all products **must** include all shipping and handling charges for shipping products F.O.B. Destination to the delivery addresses specified in this section. Any add-on shipping cost invoiced to the County will not be paid.
- 5.3.3 Ammunition is to be shipped and delivered on pallets with the pallet load weight not to exceed 2000 pounds per pallet. Pallets may not be loaded higher than three cases.
- 5.3.4 Ship-To and Bill-To addresses:
- A. *Police Department – Armory*
St. Louis County Police Department
Attn: Police Armory
41 S. Central Ave.
Clayton, MO 63105
 - B. *Police Department – Academy*
St. Louis County & Municipal Police Academy

1266 Sutter Ave.
St. Louis, MO 63133
(NOTE: No forklift at location. Liftgate delivery required.)

- C. *Parks & Recreation Department*
St. Louis County Park Rangers Division
9551 Litzsinger Rd.
St. Louis, MO 63124
- D. *Justice Services Department*
St. Louis County Justice Center
100 S. Central Ave.
Clayton, MO 63105
- E. *Sheriff's Office*
St. Louis County Sheriff's Office
105 S. Central Ave.
Clayton, MO 63105

5.4 Product Availability

- 5.4.1 Contractor accepts responsibility for verification of material availability, production schedules and other pertinent data prior to submission of bid and delivery time. It is the responsibility of the Contractor to notify the County if materials specified are discontinued, replaced, or not available for an extended period of time.
- 5.4.2 In the event the County places an order for an item which will not be available for shipping within the normal time frame of delivery for that product (due to back-ordering, market volatility, or other circumstances), the Contractor shall notify the ordering Department as soon as possible with information on the anticipated delivery time and whether there are alternative contract products that may have better availability at the time.

5.5 Award

- 5.5.1 Award will be made item-by-item, or to one total low, responsive Contractor, whichever is most advantageous to the County. Award will be made to no more than three (3) Contractors.

5.6 Contract Term, Renewal, & Pricing Adjustment

- 5.6.1 The initial term of the contract shall be for three (3) years.
- 5.6.2 Upon mutual agreement, the contract may be renewed for one (1) additional two-year term.

- 5.6.3 Prices remain firm for the first year of the contract. Thereafter, prices may be adjusted annually based upon evidence of market or manufacturer price increases. To request a price increase, Contractor shall submit a letter with supporting evidence of said price increase to the Director of Procurement for review. If approved, the price adjustment will be agreed upon by formal amendment.
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SAINT LOUIS COUNTY
Administration

VENDOR INFORMATION FORM

Company Legal Name_____

Doing Business As (if different from above)_____

Company E-Mail Address_____

U.S. Mail Street Address_____

City/State_____ Zip Code_____

Company Telephone Number_____

State in Which Company is Domiciled **Select One**

If applicable, is the company an: Minority-Owned Business Enterprise (MBE) ☐

Woman-Owned Business Enterprise (WBE) ☐

If so, certified by which entity: **Select Certifying Agency**

We only accept certification from the Missouri Department of Transportation (MoDOT) and St. Louis Development Corporation (SLDC)

CONTRACT EXECUTION

The president or owner of the company is authorized to sign St. Louis County contracts. If someone other than the president or owner is to sign the contract, attach a Board of Directors Resolution or a letter from the president or general counsel specifying the authority.

Name_____ Title_____

Direct E-Mail Address_____

VENDOR CONTACT FOR BID PROCESS – ORDER INFORMATION (IF AWARDED)

If order information is routed to a specific person, it is the vendor's responsibility to inform the County if that person changes. Direct all contact information updates to (314) 615-7067 or by e-mail to purchasing@stlouiscountymo.gov.

Name_____ Direct Phone Number_____

Direct Contact Email Address_____



VENDOR BACKGROUND INFORMATION AND REFERENCES

Company Name: _____

How many years has your company been in business?	
What was your average annual revenue for the last 3 years?	
In the last five years, has your company or a related company with common management:	
Filed for bankruptcy?	☐ Yes ☐ No
If yes, explain:	
Had a contract terminated by government or public entity?	☐ Yes ☐ No
If yes, explain:	
Been penalized or fined for a work-related issue associated with a contract?	☐ Yes ☐ No
If yes, explain:	
In the past five years has the company or a manager been indicted or convicted of a crime?	☐ Yes ☐ No
If yes, explain:	
Failed to complete the work it was contracted to do?	☐ Yes ☐ No
If yes, explain:	
Are there any pending claims or lawsuits against your company that may prevent the completion of the work for this contract?	☐ Yes ☐ No
If yes, explain:	

What other projects does your company have scheduled during the time this project will be underway?			
Project Description	Value	Start Date	Expected End Date

Company Name:_____

Provide three references for which you have provided similar types and quantities of goods or services over the past three years.

REFERENCE 1			
Name of Entity			
Description of Service			
Dollar Value of Contract			
Contact Person			
Contact E-Mail			
Business Phone		Mobile Phone	
REFERENCE 2			
Name of Entity			
Description of Service			
Dollar Value of Contract			
Contact Person			
Contact E-Mail			
Business Phone		Mobile Phone	
REFERENCE 3			
Name of Entity			
Description of Service			
Dollar Value of Contract			
Contact Person			
Contact E-Mail			
Business Phone		Mobile Phone	
NAICS CODES			
What are your North American Industry Classification System (NAICS) codes and titles?	NAICS Codes		NAICS Titles